



WRONGFUL DEATH • INSIGHT

Who Can Actually File a Wrongful Death Claim? It's Narrower Than You'd Think

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Not everyone in a grieving family has the legal standing to bring a wrongful death claim, and getting this wrong at the outset can stall a case before it starts. State law controls who can file, and it's narrower than most people expect.

Standing usually starts with immediate family

Most states give standing to a surviving spouse, children, and in some cases parents of the deceased, roughly in that order of priority. Some states allow the personal representative of the estate to file on behalf of these beneficiaries rather than having family members file individually; which structure applies depends entirely on where the death occurred.

Extended family and dependents are a gray area

Siblings, grandparents, and financial dependents who aren't a spouse or child sometimes have standing and sometimes don't, depending on the state and the specific family situation, such as whether they were financially dependent on the deceased. This is one of the areas where state law diverges the most.

A wrongful death claim and a survival action are different things

A wrongful death claim compensates surviving family for their own losses, like lost financial support and loss of companionship. A survival action is separate, and compensates the estate for what the deceased could have claimed had they survived, such as their own pain and suffering before death and medical bills incurred. The same incident can support both, filed by different parties.

Multiple eligible family members don't mean multiple lawsuits

When several family members have standing, states typically require a single consolidated wrongful death action rather than separate lawsuits from each person, with any recovery then divided among them. Sorting out who actually leads that action, and how a recovery would be shared, is worth resolving early rather than after a settlement is on the table.

If your family is trying to figure out who actually has the right to bring a claim, that question is worth answering first, before anything else moves forward.

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